

Court No. - 32

Case :- WRIT - C No. - 40269 of 2019

Petitioner :- Arvind

Respondent :- State Of U.P. And 3 Others

**Counsel for Petitioner :- Vipin Kumar
Dwivedi, Bipin Kumar Tripathi**

**Counsel for Respondent :- C.S.C., Mahboob
Ahmad**

Hon'ble Shashi Kant Gupta, J.

Hon'ble Piyush Agrawal, J.

This writ petition has been filed, inter alia, for the following reliefs:

"(A) Issue a writ, order or direction in the nature of certiorari quashing the impugned recovery citation dated 13.11.2019 issued by the respondent no. 4 pursuant to recovery proceeding initiated by the respondent no. 2 for the recovery of amount in the tune of Rs.3,44,999/- in respect of electricity dues against the petitioner.

(B) Issue a writ, order or direction in the nature of suitable mandamus restraining the respondent no. 4 not to proceed pursuant to impugned recovery citation dated 13.11.2019 in respect of ex parte assessment of amount may by respondent no. 2. "

Heard the learned counsel for the petitioner, learned counsel for the electricity department and perused the record.

Learned counsel for the petitioner has submitted that the respondents are taking coercive action against the petitioner without giving any opportunity of hearing and without following the provisions contained under the U.P. Electricity Supply Code 2005.

Considering the facts and circumstances of the

case and taking a lenient view in the matter, we direct the petitioner to appear on 20.12.2019 at 11.00 A.M. before the Respondent No.2, Executive Engineer along with his objection and adduce his evidence, if any, in support of his contention. The Respondent No.2, thereafter, shall pass a final order by a speaking and reasoned order after considering the objections of the petitioner as well as the contention raised by the petitioner within a period of four weeks thereafter.

For a period of six weeks from today or till the disposal of the representation/objection, whichever is earlier, no coercive action shall be taken against the petitioner. In case of default in filing the objection/representation, as indicated herein above, the present interim order shall stand vacated and the impugned recovery citation shall stand revived automatically.

In case the petitioner is aggrieved with the final order, if any, passed against the petitioner, it will be open for the petitioner to file an appeal before the concerned authority under Section 127 of the Electricity Act, 2003 in accordance with law.

With the above observations, the writ petition stands disposed of.

Order Date :- 7.12.2019

Arun